

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
SENIOR JUDGE WILEY Y. DANIEL**

Courtroom Deputy: Robert R. Keech
E.C.R./Reporter: Julie Thomas

Date: February 7, 2017

Civil Action No: **13-cv-02826-WYD-CBS**

Counsel:

ELHAM SALEMI,

Plaintiff,

Darold W. Killmer

Mari A. Newman

Eudoxie Dickey

v.

**COLORADO PUBLIC EMPLOYEES'
RETIREMENT ASSOCIATION,**

Defendant.

Meghan W. Martinez

Ann C. Purvis

COURTROOM MINUTES

JURY TRIAL (DAY 7)

9:00 a.m. JURY ARRIVES TO COMMENCE DELIBERATIONS.

2:45 p.m. Court in Session - Jury not present.

Court's reads question from jury.

2:46 p.m. Discussion regarding response to question from jury.

Court submits written response to question from jury.

2:52 p.m. Court in Recess - Subject to call.

3:59 p.m. Court in Session - Jury not present.

Court's reads question from jury.

4:00 p.m. Discussion regarding response to question from jury.

4:10 p.m. Jury enters the courtroom.
Court makes inquiry of the jury.

4:11 p.m. Juror 100304244 responds to Court's inquiry.
Court responds to question from jury and reads jury instruction 28.

4:13 p.m. Jury excused to resume deliberations.
Court's remarks to counsel regarding availability.

4:14 p.m. Court in Recess - Subject to call.

4:26 p.m. Court in Session - Jury not present
Court informs counsel that jury has reached a verdict.

4:30 p.m. Jury enters
Court reads jury verdict.

4:31 p.m. Jury is polled.
Court thanks jurors for their service and they are discharged.

4:35 p.m. Jury excused
Court's closing remarks to counsel.

ORDERED: Defendant's Motion to Strike Plaintiff's Expert Economist from Plaintiff's Trial Witness List and to Exclude Evidence of Alleged Damages Outside the Applicable Recovery Period (ECF Doc. No. 153), filed January 26, 2017, is **DENIED AS MOOT.**

4:35 p.m. Court in Recess - TRIAL CONCLUDED.

CLERK'S NOTE: **EXHIBITS WERE RETURNED TO COUNSEL AT THE CONCLUSION OF THE TRIAL.**

TOTAL TIME: **:31**